

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

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DIANE C. DESOUSA and
THOMAS E. DESOUSA,

Index No.600371/2021

Plaintiffs,

**AFFIDAVIT OF
THOMAS E. DESOUSA**

-against-

Justice Assigned:
Hon. Frank Tinari

RICHARD A. CALVAGNO II and
PATRICK J. KARCHER,

Motion #002

Defendants.

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STATE OF NEW YORK)
)ss.:
COUNTY OF SUFFOLK)

THOMAS E. DESOUSA, being duly sworn, deposes and says:

1. I am a plaintiff in the above-entitled action and as such, am fully familiar with the facts and circumstances set forth herein. I make this affidavit in opposition to defendant Richard A. Calvagno II's ("Calvagno") motion seeking summary judgement dismissing my complaint and for counsel fees.

2. In their motion for summary judgement, Calvagno and his counsel blatantly mislead this Court about the evidence produced during discovery in this case. Rather than address the merits, they attempt to distract the Court with false claims of discrimination at an extreme and comical level.

3. Despite the fact that I absolutely deny each and every accusation Calvagno makes against me, there is truly no need for my denials as Calvagno has not provided an iota of evidence to support his claims of discrimination, harassment, and name calling. These purported incidents have no basis in actual facts as Calvagno simply invented them to distract from his own outrageous and unlawful conduct in this case. In fact, whenever Calvagno was put to the test and

asked about times, dates, witnesses of any such event, all the clarity he has about what was supposedly done to him by me evaporates about the when, where and how, and there is never a camera or witness.

4. The origin of this case was due to Calvagno remotely starting his high performance Dodge Charger Hellcat, a vehicle possessing in excess of 700 HP, and warming that car for extended periods of time between 6 a.m. and 7 a.m. each morning. This vehicle does not just start but explodes. After Calvagno purposely and unnecessarily revved his engine, he would thereafter speed down the street, causing even greater reverberations throughout my home.

5. The sound generated by Calvagno's vehicle has caused the noise levels inside my home, which is located across the street, to consistently reach 75 dB(A), and has reached as high as 79.9 dB(A). To put this in perspective, the common noise level of a busy traffic intersection is between 70-80 dB(A).¹ In other words, Calvagno has purposely transformed the interior of my home into a busy traffic intersection nearly every morning for the past several years.

6. The excessive and unreasonable noise generated by Calvagno's vehicle also causes deep and powerful vibrations throughout my home. This situation has adversely impacted my wife and I, as each morning our bed shakes to the explosion of force emitted from this vehicle. Sleeping late is now an impossibility as we are jolted awake when that car unnecessarily explodes each morning at around 6 a.m. to 7 a.m.

7. I initially lived in peace with Calvagno from the time he moved in, until the Dodge Charger Hellcat came to town. I asked Calvagno to be a good neighbor and try to minimize the impact of his car when he started and operated it each day. I explained the effect the car had on me and my wife every morning. The explanations and requests fell upon deaf ears.

¹ Bolt, Beranek and Newman, *Fundamentals and Abatement of Highway Traffic Noise*, U.S. Department of Transportation, Federal Highway Administration, National Highway Institute, 1973

In fact, things got worse.

8. For the past several years, I awaken every morning with dread of the noise and vibration that will emanate when he starts and idles his car. It is a horrible way to start your day, it is a worse way to live.

9. My wife and I were at our wits end, with nowhere to turn, when we decided to begin this action. Simple requests to Calvagno had failed, and the police seemed powerless to be able to catch him in the act and stop it.

10. Throughout this ordeal, my wife and I have tried to be reasonable, we tried to reach out and come to an accommodation with Calvagno. We asked him to back his car into the driveway, so the car would start facing his home and would lessen the noise and vibration headed our way. That was firmly rejected. Instead, Calvagno makes it a point to purposely position his car with its exhaust directed towards my residence, so that we feel the effects of his vehicle each morning. This creates a situation akin to facing a cannon that goes off every morning.

11. My wife and I have also been slandered by Calvagno for simply asking him to show us some respect and consideration. Our names and reputations were sullied, and we were called all sorts of vile names. We were accused in Calvagno's pleadings of being homophobic, and calling Calvagno all sorts of vile names. Threatening his job, trying to get him fired, chasing him down through the streets, following him to work. None of this is true.

12. We used to leave our windows open as my wife and I both enjoy the fresh air circulating throughout our home. However, we now keep our windows shut during all hours of the day to (albeit unsuccessfully) mitigate the noise and disruption caused by Calvagno's vehicle and driving. To undermine our claims, Calvagno submitted photographs showing that one of our

windows was opened slightly. At my deposition, Calvagno's counsel questioned me about the window being open, and I explained that it was opened to record video and take decibel readings of the noise made by Calvagno's vehicle. The opening of that one window was done to avoid taking the videos and readings from the street to lessen the chances of a confrontation with Calvagno, who, on previous occasions, has yelled, cursed, and threatened me for daring to complain about his behavior. Briefly opening my window was the only way to safely collect evidence and avoid a confrontation.

13. Calvagno's vehicle and driving has also caused me to avoid walking on the street past his house. My wife, who used to love her daily walks around the neighborhood, has stopped taking walks altogether due to Calvagno's vehicle and driving. In discovery, Calvagno provided video of me walking with a cane in the street. Those videos, however, clearly show that I am walking *away from* Calvagno's house, not toward or past it. It is of significant note that shortly before those videos were taken, I had undergone knee replacement surgery. My doctor ordered me to walk in the street post-surgery to aid in my recovery. We provided Calvagno's counsel with proof of that surgery, yet he conveniently omits any mention that the walk he videotaped was a necessity and not a luxury, or that he was provided with documentation of my surgery.

14. My wife and I are not the only individuals who were concerned and disrupted by Calvagno's behavior. I had communications with my former neighbors, Pat Schneider and James Veneziano, who used to live near Calvagno. Pat and James not only complained about Calvagno's vehicle and driving, but ultimately moved because of it as well as the numerous parties Calvagno held at his home.

15. In addition to the daily explosion of Calvagno's vehicle, the use and enjoyment of our property has been substantially and unreasonably interfered with by Calvagno's unlawful

commercial use of his property. During this litigation, Calvagno claimed, without any evidence but his own self-serving statements, that he gratuitously allows his friends to tie up their boats at his home. His claim defies logic and the evidence produced in this case. Specifically, on March 10, 2021, Calvagno attended a Board of Trustees hearing at the Village of Amityville. His purpose was to request an exemption of Amityville's four boat maximum storage regulation. Although his application was denied, I have witnessed on numerous occasions that he exceeded the maximum allowable storage without a permit, having kept five boats at his property. He blatantly disrespects the law like he does his neighbors.

16. It must also be noted that at the Board of Trustees hearing referenced above, he falsely claimed the excess boats kept at his home "were [for his] family and a neighbor." In his deposition testimony, he also claimed it belonged to friends and family but then changed his testimony minutes later by claiming the boats belonged to his "friends" only.

17. At his deposition, Calvagno also refused to truthfully and fully identify the owners of the boats kept at his home. After consultation with his attorney, he names four individuals, including "Vinny," "Justin M." and "Branny" but could not "recall" their last names – his inability to recall important facts is a common theme throughout his deposition. Of course, he later admitted that "Vinny" was Vincent Camarda – an individual he identified as a witness to his claims and defenses at the very outset of this litigation. It is particularly telling, however, that Calvagno has not obtained any affidavits or statements from "Justin M." or "Branny" and never listed them as witnesses in this case. It is obvious that Calvagno's obstructionistic behaviors and misleading testimony are rooted in his attempts to conceal the fact that he unlawfully leases bulkhead space.

18. Calvagno also claims we are complaining about a "whopping two parties."

However, this misrepresents my Complaint and testimony that Calvagno has had several large and crowded parties that were disruptive and loud. He would constantly host parties having in excess of 50 guests, and the parties would run well into the early hours of the following morning. It also ignores his own admission that he has parties all the time. Notwithstanding, both the parties he admitted to hosting in October and November 2020, were held during the height of the Covid-19 pandemic while New York had implemented strict social gathering prohibitions. Calvagno had professional caterers, servers, as well as tents set ups in his yard. His claim that he did not charge for these events is simply incredible. His credibility is even further damaged by the fact that he again could not recall the married name of the person whose wedding he held at his home – a woman he claimed to have known since high school.

19. Notwithstanding, the individuals who attended Calvagno's parties and stored their boats in his yard constantly flooding the street with cars. Some cars were parked in front of my house, and blocked my driveway. We live in an area with limited egress. Everyone must pretty much take the same route to and from their homes. On numerous occasions, my wife and I could not even get out of our own driveway because of the traffic and congestion caused by Calvagno.

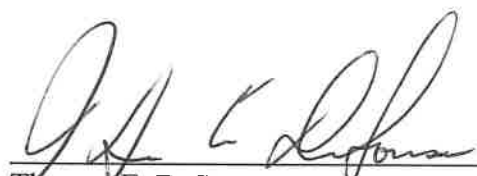
20. Finally, Calvagno consistently permits uncovered garbage to be left in front of his home; some being left in plastic bags in the street with food remnants in them. Calvagno has also engaged in an endless amount of construction at his property. For years, there have been piles of dirt, debris, and garbage, as well as trucks, materials, and other equipment scattered all over the front of his property. This behavior has directly caused a rat infestation on my property – an issue I never had until Calvagno moved in across the street.

21. The collective behavior of Calvagno, which has gone unabated for the last several years, has negatively impacted my own health. Both my wife and I have suffered sleeplessness

and nausea from the excessively loud and disruptive noise caused by Calvagno each morning. The distress caused by Calvagno's years long campaign of outrageous behavior targeted at my wife and I has also caused me to experience panic attacks, episodes of dizziness and extreme chest pains, all of which has exacerbated my cardiovascular disease.

22. As mentioned earlier, I have tried to resolve these issues with Calvagno without having to resort to litigation. He not only denied my request to make simple, reasonable accommodations but has purposely ramped up his outrageous behavior. Only this Court can provide an adequate remedy to Calvagno's years long campaign of harassment and unlawful behavior.

23. For all the foregoing reasons, including as set forth in my attorney's annexed affirmation, I ask that this Court deny Calvagno's motion for summary judgement in its entirety.


Thomas E. DeSousa

Sworn to before me this 10
day of June, 2024


Notary Public

BRENDA LOMBARDO
Notary Public, State of New York
No. 01FR002406
Qualified in Suffolk County
Commission Expires March 28, 2026